

MONTANA OWNER-BUILDER PERMIT KIT

The code that may not apply to your house · The permits that apply anyway

Project Address: _____

County: _____

City / unincorporated: _____

Owner-Builder: _____

Every Montana statute, rule, and requirement in this kit is cited on
the page it appears on — verified August 2026.

BUILD YOUR HOUSE

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First Edition — 2026

How to Use This Kit

Five working documents that take a Montana owner-builder from "does a building permit even exist for my parcel?" to a house you can legally occupy, insure, and — the part Montana enforces hardest — get permanent power to.

Montana looks, at first, like the easiest state in the country to build your own house in. It licenses no general contractor. It writes one statewide building code and then says in plain statutory language that the code **"does not apply to ... residential buildings containing less than five dwelling units"** unless your local government has adopted it, and that the state **"may not enforce"** it for those buildings (50-60-102(1)(a), (2), MCA). Across most of Montana's land area that is literally true: nobody will issue you a building permit, because there is no building permit to issue.

Then people conclude "no permits," and that is where it gets expensive. Montana puts the building code, the plumbing permit, and the electrical permit in **one chapter but four different parts**, and the exemption you just read sits in Part 1 and reaches Part 2. It does not reach the electrical part. It does not reach the energy provisions — the same section that grants the exemption turns around three subsections later and says the energy code applies to your house anyway. And none of it reaches water, wastewater, or the sanitation review that in rural Montana decides whether a lot is buildable at all.

The Montana inversion — read this twice

It is entirely normal, and legal, to build a house in Montana where **no building permit exists, no plan review happens, and no building inspector ever visits** — and to still owe an **electrical permit** that your power supplier is forbidden to connect you without, and a **written energy-code certification** that you, as the builder, must hand to yourself, as the owner, when the house is finished. Energizing an installation with no electrical permit is a **misdemeanor**. (50-60-102(1)(a), (5); 50-60-605; 50-60-607; 50-60-802(1))

WHAT THE EXEMPTION REACHES — AND WHAT IT DOES NOT

One exemption, five different answers

The piece of your house	Status	What the statute actually says
Building code and building permit	Exempt — usually	The state building code <i>"does not apply to ... residential buildings containing less than five dwelling units"</i> unless the local legislative body by ordinance or resolution makes the state building code applicable , and the state <i>"may not enforce"</i> it for them (50-60-102(1)(a), (2)). Inside a certified city or county that has adopted it, you are back under a full permit and inspection process.

One exemption, five different answers

The piece of your house	Status	What the statute actually says
Energy code	Applies anyway	Three subsections later: the energy-conservation provisions " <i>apply to residential buildings,</i> " excepting only farm and ranch buildings and private garages (50-60-102(5)(a)). For a house under five units not otherwise covered, they are enforced " <i>through the builder self-certification program</i> " (50-60-102(5)(b)(ii); 50-60-802).
Electrical permit	Applies anyway	Electrical installations are Part 6, with their own exceptions list at 50-60-602 — and that list says nothing about houses. The permit and inspection duty is at 50-60-604, and 50-60-605 bars your power supplier from energizing without the permit in hand. See MT.1.
Plumbing permit	Owner exemption	A separate and unusually generous carve-out: the owner of residential property may install " <i>all sanitary plumbing and potable water supply piping without a permit if the owner personally does the work</i> " (50-60-506(4)). Read MT.1 before you rely on it — the license rule attached to it is narrower than the permit rule.
Water, septic, land	Untouched	Nothing in chapter 60 speaks to wells, septic systems, sanitation review, floodplain, access, or zoning. These are different agencies under different titles, and in rural Montana they are the approvals that actually gate the build. See MT.2.

50-60-102(1)(a), (2), (5)(a), (5)(b)(ii); 50-60-506(4); 50-60-602; 50-60-604; 50-60-605; 50-60-802, MCA. Statute text read from the Montana Code Annotated at mca.legmt.gov, August 2026. How to settle each of these for your own parcel is worked in MT.4.

THE FOUR QUESTIONS THIS KIT MAKES YOU ANSWER FIRST

Nothing else can be answered until these are, and they are independent of one another. **(1)** Has the county, city, or town my parcel sits in adopted the state building code for residential buildings, and is its enforcement program certified? **(2)** Who issues my **electrical** permit — the Department of Labor & Industry, or a certified local program? **(3)** Does my lot already have sanitation approval, and can it get a septic permit and a legal water supply at all? **(4)** What is the ground snow load at my exact site, and who is going to engineer the roof to it? In Montana that last question is not a formality — it is the one the absence of an inspector makes most dangerous.

WHAT IS IN THE KIT

The five documents

	Document	What it does for you
MT.1	Owner-Builder Exemption Walkthrough	No state contractor license, a building code that may not apply — and the three duties that survive anyway. Includes the kit's headline finding: the homeowner electrical exemption is a <i>license</i> exemption only, while the plumbing one reaches the <i>permit</i> . Read this first.
MT.2	Permit Application Checklist	Sanitation, water, and access first — because in Montana those decide whether the lot is buildable — then the building permit if one exists, then the electrical permit that exists either way.
MT.3	Inspection Sequence	What gets inspected when a building inspector is involved, what gets inspected when one is not, and the power-supplier release that is the real finish line.
MT.4	Where-to-File Directory	How to determine whether your parcel is inside a certified local program, the state offices that own the rest, and a page to fill in your own.
MT.5	Forms & Documents Index	Each named form and certificate you will meet, which office it comes from — and the ones people go looking for that Montana does not have.

HOW TO USE IT

Read MT.1 first, before you plan to do your own wiring or plumbing. Montana's homeowner exemptions are real and among the most generous in the country, and they are also written in two different titles with two different scopes — the difference decides whether you owe a permit. **Work MT.2 with a pen, starting at the bottom of the page:** sanitation approval and a legal water supply are the long poles on a rural Montana parcel, and a lot that cannot get them cannot get a house. **Keep MT.3 on the job** — where no building inspector is coming, the log in it is the only construction record your future lender, insurer, or buyer will ever see. And **fill in MT.4 before you need it:** Montana splits the answers across a state bureau, possibly a certified local program, a county sanitarian, DEQ, and DNRC.

How these facts were checked — and what this is not

Every Montana claim here was read against its primary source in August 2026 — statute text from the Montana Code Annotated on the Legislature's own server at mca.legmt.gov, code adoptions from the Administrative Rules of Montana at rules.mt.gov, agency facts from the agency's own pages — and is cited where it appears. Where a widely repeated statement about Montana turned out to come from an agency summary rather than the statute, this kit prints the statute and says so. Where the answer is genuinely local, the kit gives you the verification step rather than a number that would rot. Statutes and adopted code editions change. This is a process reference, not legal advice.